

Before the
U.S. Copyright Office, Library of Congress
Washington, DC

In the Matter of
Section 1201 Study:
Request for Additional Comments

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Docket No. 2015–8

**Comment in Support of Permanent Exemption for Assistive Technologies for Use by
Persons Who Are Blind, Visually Impaired, or Print Disabled**
of
American Foundation for the Blind (AFB)
American Council of the Blind (ACB)
National Federation of the Blind (NFB)
Learning Ally
Samuelson-Glushko Technology Law & Policy Clinic (TLPC)

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The American Foundation for the Blind (AFB), the American Council of the Blind (ACB), the National Federation of the Blind (NFB), Learning Ally, and the Samuelson-Glushko Technology Law & Policy Clinic (TLPC) respectfully support the permanent exemption from Section 1201 of the Digital Millennium Copyright Act for assistive technologies to enable access to ebooks for people who are blind, visually impaired, or print disabled contemplated in the above-referenced Request for Additional Comments (“RFAC”).¹

As AFB’s earlier comments in this proceeding noted, the blind, visually impaired, and print disabled communities have advocated for an exemption class to facilitate access to technologically locked ebooks for nearly fifteen years, participating in each of the Office’s Section 1201 triennial review rulemakings since the 2003 iteration.² The record has consistently supported the need for the exemption to help people who are blind, visually impaired, or print disabled access ebooks on equal terms.³

While the exemption has been repeatedly renewed with little or no opposition, participation in the exemption process has imposed significant burdens on AFB, ACB, and other organizations who have advocated for the exemption on behalf of the blind, visually impaired, and print disabled communities.⁴ As a result, we have consistently advocated for the presumptive renewal of the exemption or its permanent implementation in the statutory text of Section 1201.⁵

In the RFAC, the Office seeks comment on whether it would be appropriate to adopt the exemption promulgated during the last triennial review as a permanent exemption.⁶ As described in AFB’s earlier comments, an “exemption [that] currently allows blind, visually impaired, and print-disabled people to access literary works is the quintessential example of an exemption category that should be made permanent.”⁷ We incorporate those comments by reference here.

The Office further seeks comment on whether it would be appropriate to adopt the specific language of the exemption promulgated during the last triennial review in a permanent exemption.⁸ The promulgated exemption mirrors the provisions of the Chafee Amendment to the Copyright Act, exempting circumvention in the context of:

Literary works, distributed electronically, that are protected by technological measures that either prevent the enabling of read-aloud functionality or interfere with screen readers or other applications or assistive technologies,

¹ 81 Fed. Reg. 66,296, 66,296 (Sept. 27, 2016) (“RFAC”).

² See generally AFB Comments, Docket No. 2015-8, at 2-7 (Mar. 4, 2016), <https://www.regulations.gov/document?D=COLC-2015-0012-0066> (detailing the blind, visually impaired, and print disabled communities’ participation in past iterations of the Section 1201 triennial review).

³ See *id.*

⁴ See *id.* at 7-10.

⁵ See *id.* at 10-12.

⁶ See RFAC, 81 Fed. Reg. at 66,296.

⁷ See AFB Comments at 11-12.

⁸ See RFAC, 81 Fed. Reg. at 66,296.

- (i) When a copy of such a work is lawfully obtained by a blind or other person with a disability, as such a person is defined in 17 U.S.C. 121; provided, however, that the rights owner is remunerated, as appropriate, for the price of the mainstream copy of the work as made available to the general public through customary channels, or
- (ii) When such work is a nondramatic literary work, lawfully obtained and used by an authorized entity pursuant to 17 U.S.C. 121.⁹

We strongly support the adoption of the specific language of the exemption promulgated during the last triennial review as a permanent exemption. Of course, the accessibility of ebooks is a complex and multidimensional policy issue, and associated statutory frameworks are likely to require further attention from Congress, the Office, and stakeholders from the blind, visually impaired, and print disabled communities and the publishing industry over the coming years. However, codifying the unopposed exemption granted during the last triennial review would establish a critical baseline for protecting the civil and human rights of people who are blind, visually impaired, or print disabled to access ebooks on equal terms, mitigate the burdens on the non-profit organizations who represent the blind, visually impaired, and print disabled community, and serve the ends of the Marrakesh Treaty.¹⁰

Accordingly, we urge the Office to recommend making the exemption promulgated during the last triennial review permanent, as written, and Congress to act swiftly in implementing that recommendation.

⁹ See 37 C.F.R. § 201.40(b)(2) (2016).

¹⁰ See AFB Comments at 11-12.